TITLE 8.—ALIENS AND NATIONALITY

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CROSS REFERENCES

Enemy aliens, see Title 50, WAR.

Chapter 1.—GENERAL PROVISIONS

§§ 1–18. Repealed or transferred.

These sections, relating to citizenship, were affected by the Nationality Act of 1940, section 501 et seq. of this title.

That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation, and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by section 904 of this title. See the notes below for history of individual sections.

SECTION 1, relating to citizenship of persons born in the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. It was from R. S. § 1992, which was revised from act Apr. 9, 1866, ch. 31, §.1, 14 Stat. 27. Present provisions are contained in section 601 (a) of this title.

SECTION 2, relating to citizenship of persons born in Territory of Oregon, is set out in note under section 601 of this title. It was from R. S. § 1995, which was revised from act May 18, 1872, ch. 172, § 3, 17 Stat. 134.

SECTIONS 3–3c, relating to citizenship of Indians, are set out in note under section 601 of this title. Section 3 was from acts Feb. 8, 1887, ch. 119, § 6, 24 Stat. 390; Mar. 3, 1901, ch. 868, 31 Stat. 1447; May 8, 1906, ch. 2348, 34 Stat. 182; Nov. 6, 1919, ch. 95, 41 Stat. 350; Mar. 3, 1921, ch. 120, § 3, 41 Stat. 1250; June 2, 1924, ch. 233, 43 Stat. 253; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1173. Section 3a was from act June 19, 1930, ch. 544, 46 Stat. 787. Sections 3b and 3c were from act May 7, 1934, ch. 221, §§ 1, 2, respectively, 48 Stat. 667.

SECTION 4, relating to citizenship of Hawaiians, is set out in note under section 601 of this title. It was from act Apr. 30, 1900, ch. 339, § 4, 31 Stat. 141.

SECTIONS 5 and 5a, relating to citizenship of Puerto Ricans, are set out in note under section 602 of this title. They were from act Mar. 2, 1917, ch. 145, §§ 5, 5a, respectively, 39 Stat. 953, as amended Mar. 4, 1927, ch. 503, § 2, 44 Stat. 1418; May 17, 1932, ch. 190, 47 Stat. 158.

SECTION 5a–1, making a further extension of time for Puerto Ricans to become citizens in cases of misinformation regarding status, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1174. It was from act May 16, 1938, ch. 225, 52 Stat. 377. Present provisions are contained in sections 602 and 722 of this title.

SECTIONS 5b and 5c, relating to citizenship of inhabitants of the Virgin Islands, are set out in note under section 601 of this title. They were from act Feb. 25, 1927, ch. 192, §§ 1, 3, respectively, 44 Stat. 1234, 1235, as amended May 17, 1932, ch. 190, 47 Stat. 158; June 28, 1932, ch. 283, § 5, 47 Stat. 336.

SECTIONS 5d–9a were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Sections 5d and 5e, relating to citizenship of persons born in Canal Zone or Panama, were from act Aug. 4, 1937, ch. 563, §§ 1, 2, respectively, 50 Stat. 553; present provisions are contained in section 603 of this title. Section 6, relating to citizenship of children born outside the United States, was from R. S. § 1993 (revised from acts Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; Feb. 10, 1855, ch. 71, § 1, 10 Stat. 604); act Mar. 2, 1907, ch. 2534, §§ 6, 7, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 1, 43 Stat. 797; present provisions are contained in sections 601 (c), 713, and 807 of this title. Section 7, relating to citizenship of children of persons naturalized under certain laws, was from R. S. § 2172, which was revised from act Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; present provisions are contained in section 714 of this title. Section 8, relating to citizenship, upon parent's naturalization, of children born abroad of alien parents, was from act Mar. 2, 1907, ch. 2534, § 5, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 2, 48 Stat. 797; present provisions are contained in section 714 of this title. Section 9, relating to citizenship of women citizens as affected by marriage, was from acts Sept. 22, 1922, ch. 411, § 3 (a), 42 Stat. 1022; July 3, 1930, ch. 835, § 1, 46 Stat. 854; Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511; present provisions are contained in section 717 of this title. Section 9a, relating to repatriation of native-born women married to aliens prior to Sept. 22, 1922, was from act June 25, 1936, ch. 801, 49 Stat. 1917, as amended July 2, 1940, ch. 509, 54 Stat. 715; present provisions are contained in section 717 (b) of this title.

SECTION 10, relating to the effect of certain repeals on citizenship of women marrying citizens, is set out in note under section 710 of this title. It was from act Sept. 22, 1922, ch. 411, § 6, 42 Stat. 1022.

SECTIONS 11 and 12, relating to forfeiture of citizenship for desertion from armed forces, are set out in note under section 801 of this title. Section 11 was from R. S. § 1993 (revised from act Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490) as amended by acts Aug. 22, 1912, ch. 336, § 1, 37 Stat. 356; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 12 was from R. S. §§ 1996, 1997, which were revised from acts Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490, and July 19, 1867, ch. 28, 15 Stat. 14, respectively.

SECTIONS 13 and 14, relating to the protection of citizens when abroad, are sections 903a and 903b, respectively, of this title.

SECTION 15, relating to right of expatriation, is section 800 of this title.

SECTIONS 16–18, relating to loss of citizenship, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 16 was from act Mar. 2, 1907, ch. 2534, § 2, 34 Stat. 1228. Section 17 was from act Mar. 2, 1907, ch. 2534, §§ 2, 7, 34 Stat. 1228, 1229; present provisions are contained in sections 801, 802, and 804 of this title. Section 17a was from act May 24, 1934, ch. 344, § 3, 48 Stat. 797; present provisions are contained in section 801 of this title. Section 18 was from acts June 20, 1906, ch. 3592, § 4 (12), 34 Stat. 596; May 9, 1918, ch. 69, § 1, 40 Stat. 545; June 21, 1930, ch. 559, 46 Stat. 791; present provisions are contained in sections 723, 741 (a), 752 (b), and 746 of this title.

REPEALS

Effective date and saving clauses, see sections 906, 904 note, and 747 of this title.